5) LIMIT OF LIABILITY;MISCELLANEOUS

A. Limitation of Liability. EXCEPT FOR LIABILITY IN RESPECT OF A PARTY'S INDEMNIFICATION OBLIGATIONS HEREUNDER, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL OR EXEMPLARY DAMAGES (EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY FOR SUCH DAMAGES) SUCH AS, BUT NOT LIMITED TO, LOSS OF REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS.

B. Miscellaneous. This Agreement will be binding upon, inure to the benefit of and be enforceable by the parties and their respective successors and permitted assigns. A waiver of any breach or default under this Agreement will not constitute a waiver of any other or subsequent breach or default. The failure of either party to enforce any term of this Agreement will not constitute a waiver of such party's rights to subsequently enforce the term. Neither party shall be in default or otherwise liable for any delay in or failure of its performance under this Agreement if such delay or failure arises by any reason beyond its reasonable control, including any act of God, any acts of the common enemy, the elements, earthquakes, floods, fires, epidemics, riots, failures or delay in transportation or communications, labor strikes or work stoppages; provided, a lack of funds shall not be deemed a reason beyond a party's reasonable control. The parties acknowledge that the relationship of Production Company and Content Provider is that of independent contractors.

IN WITNESS WHEREOF, the parties hereto, intending to be legally bound hereby, have each caused to be affixed hereto its or his/her hand and seal the date indicated.

By: _____[Signature]

Legal Name of Endorser:

Date:_____

Address:_____

_____

_____

Persistence Multimedia Productions LLC.

By: Sheldon D. Bradley [Signature]

Date: 3/21/08

Address: 1138 N. Germantown Pkwy
Suite 101-225
Cordova, TN 38016

Fax: 815.642.8486